

AIA B121 – 2018

Master Service Agreement (MSA)

Remarks:

1. Verify which states we use (for legal reasons):
 - **Grace Healthcare Studios, LLC**
 - **Grace Healthcare Studios USA, LLC**
 - **Grace....., PPLC (Mississippi)**
2. Do we need an MSA for each different corporation so we can execute Service Orders AIA B221-2018 (which is a supplement to MSA B121-2018)?
3. What exact States are our “Territory”. **Verify licensure in each state.**
4. Can we digitally stamp drawings (verify per state)?
5. Does our correspondence (including email) need to be from the appropriate corporation (or can we use Grace Design Studios, LLC)? **We need to develop Revit templates in Revit 2026 since no templates are/were developed for 2025. So everyone needs to start this work in Revit 2026! Including Consultants!**
6. Agreement is signed and dated October 14, 2025, but under Article 1.1, Part 1 – Agreement Term, it states: ‘The “Date of this Agreement” is January 1, 2026.’ **This date is required for each Service Order.**
7. Article 1.4 – Service Order supersedes this agreement on a per project basis in case of conflict.
8. Article 1.7.1 – In each Service Order, the Architect will identify a representative authorized to act on behalf of the Architect with respect to the **Service Order**.
Should this be the Group Project Manager (Admin. Or Clinical) and Project Architect or Interior Designer (Project Leader)?
Kriste is the representative for the MSA Document.
9. **Article 2.3 – Structural, Mechanical & Electrical Consulting Services are considered Basic Services for every Service Order (whether identified or not). (Paraphrasing)**
Attachment E States:
“Percentage Basis – Includes Architectural, Interior Design to complete the required Basic Services.
Structural, Mechanical, Electrical, Plumbing Fees, Civil Engineering, and Specialty Consultants shall be a separate lump sum fee proposal on a per project basis. Feasibility...”
Exhibit F States:
“Price per square foot by project type and project size (of affected project area) for the **Basic Services** that may be required during the below listed project delivery types”
10. Article 3.4.4 – “Prior to execution of each Service Order, the Architect will visit the Project site and review.....”

Statement appears to conflict with the intended Scope of Work Exhibit. Site Due Diligence is part of the Schematic Design Phase. We need this clarified so that we are not entering into a Service Order without having been to the Site or at least, at a minimum, the understanding that the Service Order is being developed based solely on the information provided by the Owner or the Designated Representative. This issue has been brought to the attention of Design Experience.

11. Article 9.3 – If the Architect requires the performance of Additional Services for a Project, then the Architect must identify in the Service Order for the Project (i) each Additional Service so required; and (ii) the Architect’s compensation for those Additional Services. The owner is only required to compensate the Architect for Additional Services provided for a Project if the Owner has agreed to the same in the Service Order for the Project.
12. Article 9.4.1 – The Architect shall only be entitled to be reimbursed for Reimbursable Expenses to the extent expressly identified in a Service Order.
13. Article 9.4.2 – Reimbursable Expenses are in.....Service Order as follows:
 - .1 Transportation and authorized out-of-town travel and subsistence, see Exhibit N for Owner Policy;
 - .2 Permitting and other fees required by authorities having jurisdiction of the Project;
 - .3 Site office expenses agreed upon in writing by the Owner.
14. Article 9.5.2, Part 3 – Before requesting any payment under this Agreement, and as a condition precedent to any enforceability of this Agreement by the Architect, the Architect shall have submitted to the Owner and Owner shall have accepted in writing the Project Schedule (as defined in Exhibit C) for setting out the dates on which Architect plans to complete schematic design phase, design development phase, and construction documents phase, bidding or negotiating phase. The Project Schedule shall also set out the dates by which any actions, decisions, or information are required from the Owner to permit the Architect to perform according to the Project Schedule.

Project Schedule is not defined in Exhibit C. **Statement appears to technically conflict with the intended Scope of Work Exhibit (SLA’s, General Services, and Basic Services). The Architect is intended to work with the Owner’s Representative to Develop the ‘Project Schedule’, which is created and updated by the Representative.** The Architect is responsible for developing a schedule for the performance of Architect’s Services (Design Schedule). **Need to clarify exactly who determines required Owner review and approval times (and/or other Portions not in the control of the Architect)**

15. Article 10.9 – Any use of, or reliance on, all or portion of a building information model without agreement to written protocols governing the use of, and reliance on, the information contained in the model shall be at the using or relying party’s sole risk and without liability to the other party and its contractors or consultants, the authors of, or contributors to, the building information model, and each of their agents and employees.
16. Article 12.2, Part 8 – Innovation Scope of Work (and Fees) was/is also “**Intentionally Omitted**”.